

Current Probate Tentative Rulings – Judge Benson			
Time	Case Number	Style	Tentative
<u>9:00</u>	26PR00152	Nolta Family Trust-2008	Petitioners Stephen B. Cowee, Lynn Meacham and Jim Thompson’s (collectively “Petitioners” herein) Requests for Judicial Notice are granted. However, the Court notes that while it is taking notice of the existence and filing of the various complaints, it is not accepting as truth any allegation therein. Respondents Rocque Merlo, Ana Altube-Starr and Barbara Gesheker (collectively “Respondents” herein) Objections to Evidence are overruled. The Court finds that both the Nolta Family Trust-2008 and the Altube Trust authorize the trustee to defense this action at the expense of the Trusts. See, Section 11.05 of the Nolta Family Trust-2008 [“The Trustee is authorized to defend, at the expense of the Trust Estate, any contest or other attack of any nature on this trust or any of its provisions”], and Article Seventh, Paragraph F [“To commence or defend such litigation with respect to the trust or any property of the trust estate as the Trustee may deem advisable, at the expense of the trust”] and Article Twelfth [“shall pay from income or principal of the trust estate ... all expenses incurred in the administration of this trust and the protection of this trust against legal attack, including counsel fees”]. Based on the allegations in the Verified Amended Petition for Breach of Trust; Unjust Enrichment; Breach of Fiduciary Duty; Constructive Fraud; Financial Elder Abuse; for Orders to Invalidate Amendments and Powers of Appointment; to Remove Trustees; to Compel Accounting; to Surcharge Trustees; Request for Instructions; Intentional Infliction of Emotional Distress, this matter falls under the purview of an attack on the Trusts, and therefore, the trustees are within their authority to defend the trusts with trust assets. The Motion is denied. The Court will hear from counsel regarding whether the parties are ready to set this matter for a contested hearing.